

Conclusion

As the Parties have failed to properly meet and confer prior, the Court orders as follows:

- The parties are ordered to meet and confer in person, via telephone or video conference on or before 5:00 p.m. on **May 29, 2026**.
- Cross-Complainant's counsel shall file a declaration by 4:00 p.m. on **June 5, 2026** confirming when and how the meet and confer took place.
- The declaration shall state that the Parties either (1) reached an agreement on the merits of the Demurrer and the Parties are stipulating to the filing of an amended answer, or (2) did not reach an agreement and the Court should proceed with ruling on the Demurrer as filed – or any portion thereof to which the Parties could not agree. (For example, if Cross-Defendant agrees to withdraw any of the Affirmative Defenses, the parties shall notify the Court of this.)

The hearing on the matter is continued until **June 22, 2026**.

11. 9:00 AM CASE NUMBER: C25-01362
CASE NAME: BRUNO VIEIRA VS. JIMMY BASTOS
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL FOR PLTFs**
FILED BY:
TENTATIVE RULING:

Gregory W. Reaume ("Counsel") filed a motion to be relieved as counsel on January 15, 2026 (the "Motion to be Relieved as Counsel"). The Motion to be Relieved as Counsel was set for hearing on June 1, 2026. The motion was subsequently advanced for hearing to April 27, 2026 by the Court's Order entered April 27, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Bruno Melo Vieira ("Plaintiff").

The supporting declaration filed by Counsel indicates that ongoing "irreconcilable differences" have arisen between counsel and Plaintiff which have made it unreasonably difficult for the attorney to carry out the representation effectively. See Declarations filed January 15, 2026, ¶2. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

No opposition or other response has been filed by Plaintiff or any other party.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to submit a revised order after hearing. The form MC-053 Order should be updated to reflect the latest calendar settings at Paragraph 7 and updated departmental and other hearing information.

12. 9:00 AM CASE NUMBER: C25-02242

CASE NAME: MECHANICS BANK VS. BHUPINDER LALLY

HEARING ON SUMMARY MOTION BY PLAINTIFF.

FILED BY: MECHANICS BANK

TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **May 4, 2026, 9:00 am in Department 34.**

13. 9:00 AM CASE NUMBER: C25-02968

CASE NAME: PAMELA SWARTS VS. AMY PATTON

***HEARING ON MOTION IN RE: CONSOLIDATE RELATED CASES**

FILED BY: SWARTS, PAMELA

TENTATIVE RULING:

Plaintiff Jeffrey Swarts and plaintiff and defendant Pamela Swarts (“Moving Parties”) bring this motion to consolidate in an effort to consolidate this matter (C25-02968), with a case originally brought in small claims court (MSC25-0485), which was filed by plaintiffs and defendants Travis Patton and Amy Patton (“Opposing Parties”).

For the reasons set forth below, the motion to consolidate is GRANTED.

Background

Opposing Parties filed a small claims action on August 26, 2025, asserting that they executed a lease agreement with Pamela Swarts for the rental of real property (the “Property”). Opposing Parties paid the first month’s rent (\$6,600) and a security deposit (\$6,600) but allege that they soon learned that there was a severe rodent infestation, that was not disclosed, at the Property. They elected to terminate the lease and subsequently sought \$12,500 in small claims court, as a refund of their security deposit and first month’s rent.

Moving Parties filed an unlimited civil action on October 13, 2025, against Opposing Parties and defendant Carolyn Lehman (“Lehman”), asserting a claim against Opposing Parties for breach of contract and asserting claims against Lehman for intentional interference with prospective economic relations and defamation.

On December 30, 2025, the Court entered an order that pursuant to Code of Civil Procedure section 116.390, the small claims case would be transferred to the Superior Court. On January 27, 2026, the Court denied a motion for reconsideration of the December 30, 2025 order.

Legal Standard

Code of Civil Procedure section 1048 provides, “When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in